

25CV04578 Derrick Farand Hayes vs Housing Authority of the County of Santa Barbara

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-14

Motion: Motion to Set Aside Dismissal and Order

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Tentative Ruling: Derrick Farand Hayes vs Housing Authority of the County of Santa Barbara

Case Number

25CV04578

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/14/2026 - 09:00

Nature of Proceedings

Motion to Set Aside Dismissal and Order

Tentative Ruling

Derrick Farand Hayes v. Housing Authority of the County of Santa Barbara

Case No. 25CV04578

Hearing Date: September 14, 2026

HEARING: Plaintiff Derrick Farand Hayes' Motion to Set Aside Dismissal and Order

ATTORNEYS: For Plaintiff Derrick Farand Hayes: Self-represented

For Defendant Housing Authority of the County of Santa Barbara: James Burns

TENTATIVE RULING:

The motion of plaintiff Derrick Farand Hayes to set aside dismissal and order is denied.

Background:

As alleged in plaintiff's complaint (Complaint, ¶ GN-1):

Defendant Housing Authority of the County of Santa Barbara (Housing Authority) owed a duty to plaintiff Derrick Farand Hayes to exercise reasonable care in maintaining an apartment located at 127 Orange Avenue, Apartment 11, Goleta, including making repairs when there was a mold problem. Hayes complained of the mold problem in January 2025. Instead of replacing drywall, Housing Authority painted over the mold, which later ate through the paint and reappeared on the wall. Hayes has suffered physical injury as a result of the exposure to the mold.

On July 24, 2025, Hayes filed his Judicial Council form complaint asserting one cause of action for general negligence.

On August 29, 2025, Housing Authority filed its demurrer and motion to strike.

On September 8, 2025, Housing Authority served on Hayes: (1) form interrogatories, set one; (2) special interrogatories, set one; (3) document demands, set one; and (4) requests for admissions, set one.

On November 4, 2025, Housing Authority filed three motions to compel as to the form interrogatories, special interrogatories, and document demands, respectively, each also seeking an award of monetary sanctions. Also on November 4, Housing Authority filed a motion seeking an order deeming matters admitted based upon the failure of Hayes to respond to the requests for admission.

No opposition or other response was filed by Hayes to any motion.

On December 1, 2025, the court granted the discovery motions and Hayes was ordered to serve verified responses to interrogatories and document demands on or before January 5, 2025. As Hayes did not provide responses to the requests for admission prior to the hearing, the requests were deemed admitted. Hayes was present at the hearing.

On February 2, 2026, having received no responses to the interrogatories and document demands from plaintiff, as ordered, Housing Authority filed a motion for terminating sanctions. The proof of service attached to the motion shows timely and proper service on Hayes.

No opposition or other response was filed by Hayes to the motion for terminating sanctions.

On May 18, 2026, the court granted the motion for terminating sanctions.

On June 2, 2026, Hayes filed the present motion to set aside dismissal and order.

Housing Authority opposes the motion.

Analysis:

“A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.” (Cal. Rules of Court, rule 3.1110(a).)

“Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based.” (Code Civ. Proc., § 1010.)

“Section 1010’s requirement “ ‘is for the benefit of the party upon whom the notice is served,’ ” to make him or her aware of the issues to be raised in the motion. (Hecq v. Conner (1928) 203 Cal. 504, 506; see also Kinda v. Carpenter (2016) 247 Cal.App.4th 1268, 1277 (Kinda).) As stated in Kinda: “ ‘The purpose of the notice requirements ‘ ‘is to cause the moving party to “ ‘sufficiently define the issues for the information and attention of the adverse party and the court.” ’ ’ ” (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1125, quoting Hernandez v. National Dairy Products (1954) 126 Cal.App.2d 490, 493.)” (Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 137-138 (Golf & Tennis).)

“Sometimes this purpose is met notwithstanding deficient notice. For example, it may be sufficient that the supporting papers contain the grounds for the relief sought, even if the notice does not.” (Golf & Tennis, supra, 84 Cal.App.5th at p. 138.)

Here, the notice fails to state the grounds upon which the motion is based, as do the supporting papers. The supporting papers solely cite and rely upon Code of Civil Procedure section 473.5, which provides:

“(a) When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.

(b) A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.

(c) Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.

(d) This section shall remain in effect only until January 1, 2027, and as of that date is repealed.”

There was no default entered in this case, and none of Hayes’ argument pertain to anything other than setting aside a non-existent default. The motion will be denied.

In the alternative, and assuming that Hayes is attempting to have the order of May 15, 2026, granting terminating sanctions, set aside, the motion will be denied because Hayes did not satisfy the requirements of the proper code section for requesting

relief under Code of Civil Procedure section 473, subdivision (b). That section provides, in relevant part:

“The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

As noted above, on December 1, 2025, the court granted discovery motions in favor of Housing Authority and Hayes was ordered to serve verified responses to interrogatories and document demands on or before January 5, 2025. Hayes did not file opposition to that motion but was present at the hearing.

On February 2, 2026, having received no responses to the interrogatories and document demands from plaintiff, as ordered, Housing Authority filed a motion for terminating sanctions. The proof of service attached to the motion shows timely and proper service on Hayes. Hayes did not file opposition or any other response to the motion.

Hayes declares that he never received the motion. (Hayes decl., ¶ 3.) In opposition, counsel for Housing Authority declares that he served Hayes by mail and by e-mail as reflected on the proof of service. (Burns decl., ¶ 2.) As attachment 1 to the Burns declaration, Housing Authority attaches the sent email showing that Hayes was served with the motion. The email address is identical to the email provided by Hayes in the caption of his complaint. Although email alone is insufficient service on a self-represented plaintiff, the motion was properly served by mail as well. The email service was a courtesy.

“The filing of a proof of service declaration ordinarily creates a rebuttable presumption that the service was proper, but only if the service declaration “ ‘complies with the statutory requirements regarding such proofs.’ ” [Citation.]” (Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1163.)

Here, Housing Authority’s proof of service complies with all statutory requirements. Because of the statutory presumption, Hayes is “thus required to produce evidence that he was not served.” (American Express Centurian Bank v. Zara (2011) 199 Cal.App.4th 383, 390.) Other than his self-serving statement that he was not served, Hayes has produced no credible evidence that he was not served with the motion for terminating sanctions.

In weighing the declarations, the court finds Housing Authorities’ credible. The court does not find Hayes’ declaration credible. Hayes declares that had he received the motion, he would have “defended and opposed it.” (Hayes decl., ¶ 3.) Contrary to his statement, Hayes has already established a pattern on not opposing motions.

As a final note, Hayes did not file proof of service of the present motion, showing that Housing Authority was served. Counsel for Housing Authority declares that he was not served and found the motion on his own while reviewing the court’s online register of actions. (Burns decl., ¶ 4.)

Hayes’ motion will be denied.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

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